AI MODEL OPENNESS

Enterprise Capability, Data Sovereignty & Regulatory Fit

Prepared for: Business Stakeholders & Vendor Strategy Review

Executive Summary

The question this report answers: can open-weight AI models expand our enterprise capability and reduce single-vendor dependence, without creating new sovereignty or compliance exposure? Short answer — yes, selectively, and the right choice depends on the workload, not just the benchmark.

- **Capability, not just cost.** Open-weight models — especially Qwen 3.5, DeepSeek V4, GLM-5.2, and Mistral Large 3 — now sit close to closed-frontier models (Claude, GPT) on coding and agentic benchmarks, at a fraction of the per-token price. This is a genuine capability option for engineering workloads, not only a savings lever.
- **Sovereignty is a separate axis from licensing.** A model can be fully open-source and still create sovereignty risk if you call the vendor's hosted API instead of running the weights yourself. Section 1 lays out the stewardship options — from full self-hosting to closed-frontier enterprise agreements.
- **Compliance gates capability.** For workflows that touch Non-Public Personal Information (NPI) — e.g., title and settlement operations — country of origin and hosting location determine which models are usable at all, before benchmark scores are even relevant. See Section 4.
- **Self-hosting has a real cost floor.** Removing vendor lock-in adds GPU infrastructure, ops staffing, and 24/7 maintenance. It only beats an API on cost at high, sustained usage (tens of billions of tokens/month).
- **Recommendation (business view):** adopt a tiered model portfolio rather than one winner-take-all model —
    - GLM-5.2 (self-hosted) as the default for coding, software development, and technical automation — strongest cost-to-performance for engineering workloads.
    - Nemotron 3 Ultra where audit trail and reproducibility are the deciding factor — the only model here that ships its training data and code.
    - Claude Opus 4.8 retained as the closed-frontier baseline for the hardest reasoning tasks and for any workflow touching regulated data (NPI), where a U.S.-domiciled vendor with contractual data protections is required.

1. Openness as an Enterprise Capability Decision

Historically this report framed “openness” as a vendor lock-in problem. That's still true, but for a business audience the more useful framing is capability: what can each model actually do for the business, under what degree of control, and at what risk. Three questions matter more than the raw benchmark score:

- **Control:** Who holds the weights and the data used to reach them — us, a friendly vendor, or an unrelated third party?
- **Continuity:** if a vendor changes pricing, availability, or policy tomorrow, can we keep operating?
- **Compliance:** does using this model create new regulatory, contractual, or reputational exposure?

Open weights address the first two directly. They do not, by themselves, resolve the third — that depends on how the model is deployed, which is the subject of Sections 4 and 6.

1.1 Sovereign AI: Stewardship Options

"Sovereign AI" is simply the question of who is the steward of your data and your model weights. The table below ranks the practical options from most to least control, each with a different operational cost.

Stewardship Model	Who Controls Data & Weights	Ops Burden	Best Fit
Fully self-hosted (owned or colocated GPUs)	You — full control, air-gappable	Highest — hardware, ops staff, 24/7 on-call	Regulated data, highest-sensitivity workloads
Self-hosted via domestic GPU rental (e.g., CoreWeave, Lambda)	You — rented hardware, your deployment	High — no capex, but you run the stack	Sustained high-volume workloads without capex appetite
Managed deployment on a domestic hyperscaler (Azure/AWS/GCP, region-pinned)	Shared — hyperscaler processes, contract governs residency	Low-Medium — vendor manages infra	Enterprises standardized on one cloud, need SLAs & procurement simplicity
Domestic closed-frontier API (enterprise agreement, e.g., Anthropic, OpenAI)	Vendor — contractual no-train / data-handling terms	Lowest — zero infrastructure	Hardest reasoning tasks; regulated data with the right contract in place
Foreign-vendor hosted API (direct, e.g., a lab's own endpoint)	Vendor, foreign jurisdiction	Lowest, but least control	Low-sensitivity, cost-driven, non-regulated workloads only

> **Why this matters**
>
> Two models can share an MIT license and sit at opposite ends of this table — one self-hosted on our own GPUs, one called through the vendor's public API. The license tells you what you're allowed to do with the weights. It tells you nothing about where your prompts and data go if you don't self-host.

1.2 Openness, Compliance & Government Interference — the Surface View

Three related but distinct risk questions apply to every model in this report. Each is covered surface-level here and in depth later in the document (data lineage in Section 3; NPI/compliance in Section 4).

- **Openness:** Are weights, code, training data, and evaluation methodology published? This determines whether the model can be audited, self-hosted, and modified. See Section 2.
- **Compliance surface:** does using the model (or the vendor's hosted endpoint) trigger obligations under regimes like GLBA, and does the vendor's contract terms support that? See Section 4.
- **Freedom from government interference:** self-hosting an open-weight model — regardless of the lab's country of origin — keeps inference and data on infrastructure we control, which is the practical mitigation against a foreign government compelling a vendor to access or hand over customer data. Calling a foreign lab hosted API does not carry this protection, even if the weights are open.
- **Data lineage (surface):** only one model in this set (Nemotron 3 Ultra) publishes its actual pretraining datasets; the rest disclose a prose description at best. A full breakdown is in Section 3.

These are business-risk framings, not legal conclusions. Anything touching real regulated data should go through Legal/Compliance before a deployment decision is finalized — see Section 4.

2. Model Landscape, Grouped by Family

Models below are grouped by the lab that trained them, with the closed-frontier baseline (Anthropic) added as the reference point business stakeholders will recognize. "Overall Openness" reflects weights + code + data + methodology + independent evaluation, combined.

2.1 Shortlist by Vendor Family, with Country of Origin

Family (Lab)	Model	Country of Origin	License	Overall Openness
Meta	Llama 4 Maverick	United States	Custom — 700M-MAU cap, EU vision limit	Low
Alibaba	Qwen 3.5	China	Apache 2.0, no caps	Medium
Mistral AI	Mistral Large 3	France	Apache 2.0	Low-Medium
Google	Gemma 4	United States	Apache 2.0; name/trademark restricted	Medium-High
DeepSeek	DeepSeek V4 Pro / Flash	China	MIT, unrestricted	High
Zhipu AI (Z.ai)	GLM-5.2	China	MIT, no regional limits	Medium
Moonshot AI	Kimi K2.6	China	Modified MIT — >$20M/mo revenue clause	Low-Medium
MiniMax	MiniMax M3	China	Custom — authorization needed >$20M/yr	Low
NVIDIA	Nemotron 3 Ultra	United States	NVIDIA Open Model License (not OSI-approved)	Highest
Anthropic	**Claude Opus 4.8**	United States	Proprietary — closed weights, API-only	**Closed — baseline reference**

- **Data transparency is the industry's weak point.** Nemotron 3 Ultra is the only model that ships its pretraining datasets; everyone else describes the data mix in prose without releasing it (see Section 3).
- **"Vendor-run benchmarks" is the norm, not the exception.** Llama 4, GLM-5.2, and MiniMax M3 all carry explicit third-party callouts, noting their headline scores are independently verified.
- **License nuance is where the real differentiation is.** Qwen 3.5, Mistral Large 3, DeepSeek V4, and GLM-5.2 are the only truly unrestricted picks (Apache 2.0 or plain MIT); Kimi K2.6's revenue clause and MiniMax M3's authorization requirement are easy to miss if you only check "open weight = yes."

2.2 License Glossary — What Each One Actually Means

Business teams don't need to read license text to make a decision — they need to know what's actually allowed. This glossary translates the license column above into plain English.

License	Plain-English Meaning	Commercial Use	Key Restriction to Know
Apache 2.0	The most business-friendly open license. Use, modify, and redistribute freely; includes an explicit patent grant, which protects us if the vendor later asserts a patent claim.	Yes, unrestricted	Non-inherent to the license itself — check for vendor-added terms layered on top (see Gemma below).
Apache 2.0 + trademark/name restriction (Gemma 4)	Same freedoms as plain Apache 2.0 for the model weights, but Google separately restricts use of the "Gemma" name/branding and requires acceptance of Google's usage terms.	Yes	Can't call a fine-tuned or repackaged version "Gemma" without meeting Google's terms; doesn't limit the underlying code/weights.
MIT	As permissive as licenses get used, copy, modify, sell, sublicense — the only real obligation is keeping the original copyright/license notice attached.	Yes, unrestricted	None — this is the license most legal teams clear fastest.
Modified MIT (Kimi K2.6)	MIT terms, but with an added revenue trigger: once your organization's monthly revenue tied to the model exceeds a threshold (~$20M/mo), additional commercial terms from Moonshot AI apply.	Yes, below the revenue threshold	Large-scale commercial deployments must renegotiate — flag this before scaling any pilot.
Custom — usage-cap license (Llama 4)	Free to use and modify, but Meta imposes a hard user-count ceiling: once your product/company exceeds 700 million monthly active users, you need a separate license from Meta. Also restricts vision/multimodal features for users in the EU.	Yes, below the MAU cap	Irrelevant for internal enterprise tools; relevant only if embedding the model in a consumer product at a massive scale or serving EU users with vision features.
Custom — authorization required (MiniMax M3)	Free for smaller-scale use; once annual revenue tied to the model exceeds roughly $20M/yr, MiniMax requires explicit authorization before continued commercial use.	Yes, below the threshold; requires sign-off above it	Route through Legal before any deployment that could scale past the threshold — authorization isn't automatic.
NVIDIA Open Model License (Nemotron 3 Ultra)	Broad permissive rights similar in spirit to Apache/MIT, written by NVIDIA rather than a recognized open-source body — it is not OSI-approved, meaning it hasn't been certified against the formal Open-Source Definition.	Yes	Not a blocker in practice, but "not OSI-approved" is the kind of detail a procurement or open-source compliance review will flag — route through Legal for sign-off, not because it's restrictive, but because it's non-standard.
Proprietary / closed API (Claude Opus 4.8, and other closed-frontier models)	No weights are released at all. Usage is governed entirely by the vendor's commercial API terms and enterprise agreement — there is nothing to self-host.	Yes, under the API/enterprise contract	All controls sit in the contract, not a license file — data handling, retention, and "no training on our data" commitments must be negotiated explicitly.

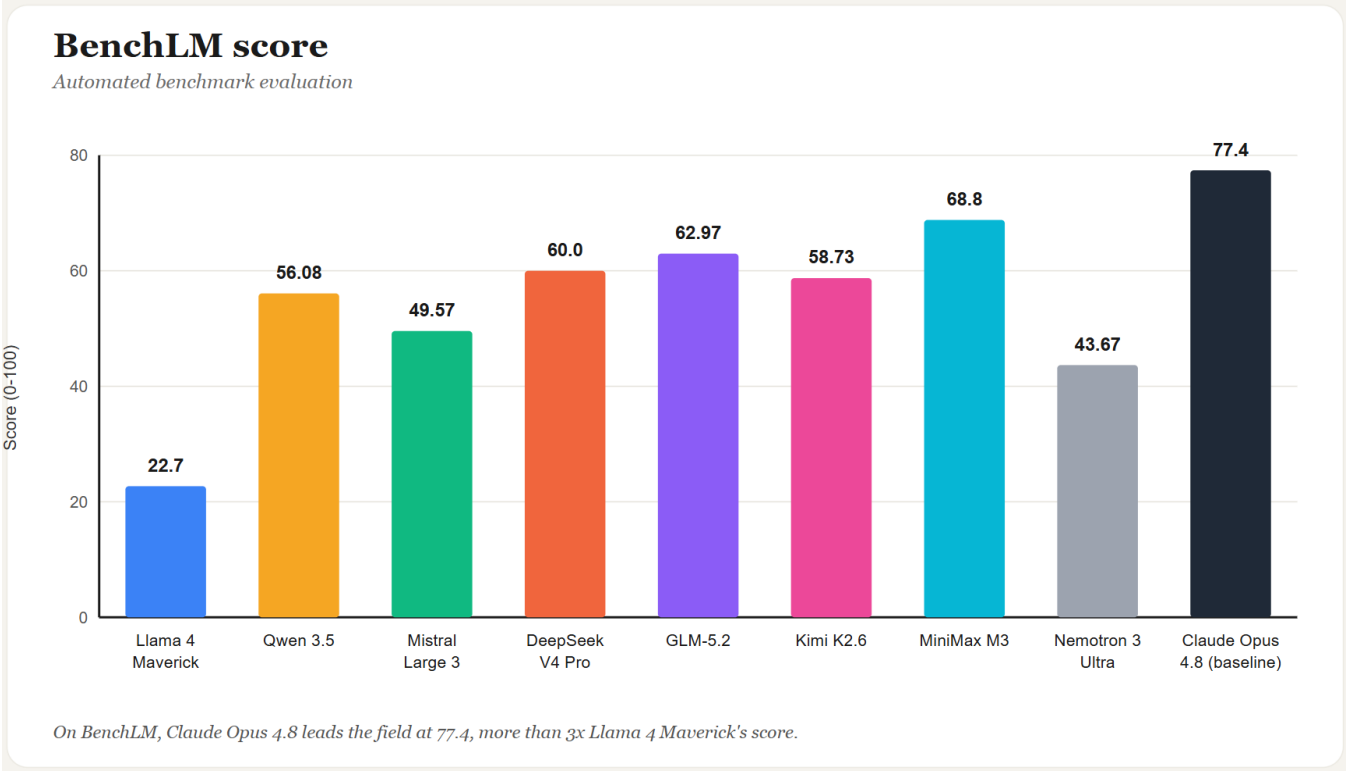
This glossary is a plain-English summary for internal planning, not a legal opinion. Any procurement or redistribution decision should still get a Legal review of the underlying license text.

2.3 Benchmark Comparison, Including the Closed-Frontier Baseline

Figures are the best publicly available numbers as of this report's last-verified date; some are vendor-reported rather than independently confirmed (marked *). Treat this table as directional and re-verify before purchasing decisions.

Model	SWE-Bench	BenchLM rank	BenchAlign score (/100)	GPQA Diamond	MMLU-Pro
Llama 4 Maverick	53.0	#205 / 215	22.7	n/a	~80–85
Qwen 3.5	76.4	#79 / 215	56.08	n/a	n/a*

Mistral Large 3	n/a	—	49.57	~44	73.1
DeepSeek V4 Pro	80.6	#48 / 215	60.0	90.1	87.5
GLM-5.2	62.1	#40 / 215	62.97	91.2	n/a*
Kimi K2.6	80.2	#65 / 215	58.73	n/a	n/a*
MiniMax M3	80.5	#18 / 215	68.8	n/a	n/a*
Nemotron 3 Ultra	71.9	#157 / 215	43.67	87	n/a*
Claude Opus 4.8 (baseline)	69.2*	#6 / 215	77.4	n/a*	n/a*



On BenchLM, Claude Opus 4.8 leads the field at 77.4, more than 3x Llama 4 Maverick's score.

3. Data Lineage — What Each Vendor Actually Discloses

"Open weights" does not mean "we know what the model was trained on." This section expands the surface-level flag from Section 1.2 into a per-vendor breakdown, since data lineage drives both audit-readiness and IP/contamination risk.

Model	What's disclosed about training data	Lineage Risk Note
Llama 4 Maverick	Model card only; ~22T tokens referenced but the data mix is undisclosed.	No way to audit for licensed/copyrighted or PII-contaminated sources.

Model	What's disclosed about training data	Lineage Risk Note
Qwen 3.5	Blog post + survey paper reference; no full data paper.	Directionally informative, not independently verifiable.
Mistral Large 3	Release blog posts only.	At least disclosure among the Apache-licensed models.
Gemma 4	Data sources described in a full technical report, but the dataset itself is not released.	Best disclosure short of full release — good middle ground for audit purposes.
DeepSeek V4 Pro/Flash	Detailed technical report describing the training pipeline; underlying dataset not released.	Strongest documentation among MIT-licensed models, still not reproducible from scratch.
GLM-5.2	Partial write-ups; no full data paper.	Limited audit trail relative to its capability tier.
Kimi K2.6	Partial disclosure (MuonClip methodology described); data mix undisclosed.	Methodology transparency without data transparency.
MiniMax M3	Full technical report on methodology, but data provenance undisclosed; benchmark claims are flagged as vendor-run.	Weakest combination in this set: limited data lineage plus unverified benchmarks.
Nemotron 3 Ultra	Multiple named pretraining datasets released alongside training code.	Only model here that supports a genuine reproducibility / audit claim end-to-end.
Claude Opus 4.8 (baseline)	Anthropic publishes model and system cards describing safety testing and high-level training approach; the model is closed-weight and the training dataset is not released.	No self-hosting or dataset audit is possible by design — assurance here comes from the vendor relationship and contract, not inspection.

Treat this table as a starting point for a legal/compliance data-provenance review, not a substitute for one — vendor disclosures change with new model releases.

4. Compliance Deep Dive — Non-Public Personal Information (NPI) & Title Insurance

This section addresses feedback specific to the title insurance / settlement services line of business, where handling Non-Public Personal Information (NPI) is a daily operational reality, not an edge case.

4.1 The Regulatory Backdrop

- **Title and settlement companies are "financial institutions" under GLBA.** The Gramm-Leach-Bliley Act classifies title insurance companies and agents as financial institutions, subjecting them to the FTC's Privacy of Consumer Financial Information Rule and the Safeguards Rule.
- **NPI is broad.** Non-Public Personal Information covers personally identifiable financial information a consumer provides, or that's derived from a transaction — names, SSNs, loan and account details collected through loan applications, title orders, and closing documents. Public record data (recorded deeds, tax assessments) is not NPI on its own but combining it with private financial data typically elevates the whole file to NPI status.
- **ALTA Best Practices, Pillar 3.** The American Land Title Association's Title Insurance and Settlement Company Best Practices frame vendor/service-provider oversight explicitly: physical and network security of NPI, secure disposal, disaster management, employee training, and — most relevant here — oversight of third-party service providers who touch NPI.

4.2 Where AI Models Fit — the Decision Framework

An AI model that touches NPI (e.g., summarizing a loan file, extracting data from closing documents, drafting borrower communications) makes the model vendor a de facto "service provider" in ALTA/GLBA terms. Two questions decide whether a given model is usable for that workflow, before any benchmark score matters:

- **1. Does the data leave our infrastructure at all?** Self-hosted deployment (open weights, run on our own or a domestic rented GPU) keeps NPI inside our security perimeter — the simplest and strongest position under Pillar 3, regardless of which lab trained the model.
- **2. If it does leave our infrastructure, whose legal jurisdiction does it land in, and under what contract?** Calling a vendor's hosted API means NPI transits and is (at least transiently) processed on that vendor's infrastructure. A signed data processing agreement with a no-training, no-retention, U.S.-data-residency commitment is the minimum bar; a hosted endpoint from a lab with no such agreement in place — open-weight or not — does not clear it.

4.3 Model Suitability for NPI-Touching Workflows

Model	Country of Origin	Direct call to vendor's hosted API with NPI?	Recommended Pattern
Llama 4 Maverick	United States	Caution — confirm DPA	Self-host, or use only with a signed enterprise agreement
Qwen 3.5	China	Avoid	Self-host domestically only; do not call Alibaba's hosted endpoint with NPI
Mistral Large 3	France	Caution — confirm data-residency terms	Self-host, or EU-hosted enterprise agreement with residency terms confirmed
Gemma 4	United States	Caution — confirm DPA	Self-host, or Google Cloud enterprise terms with data-use commitments confirmed
DeepSeek V4 Pro/Flash	China	Avoid	Self-host domestically only; do not call DeepSeek's hosted endpoint with NPI
GLM-5.2	China	Avoid	Self-host domestically only; do not call Zhipu's hosted endpoint with NPI
Kimi K2.6	China	Avoid	Self-host domestically only; do not call Moonshot's hosted endpoint with NPI
MiniMax M3	China	Avoid	Self-host domestically only; do not call MiniMax's hosted endpoint with NPI
Nemotron 3 Ultra	United States	Caution — confirm DPA	Self-host — strongest audit trail if NPI workflow also needs to be defensible to regulators
Claude Opus 4.8 (baseline)	United States	Yes, under a signed enterprise agreement	Preferred zero-ops path for NPI workflows once a data-handling agreement is executed

5. Cost — API vs. Self-Hosting, by Model

Figures are the best publicly available numbers as of this report's last-verified date; several are directional (marked *). Re-verify before any purchasing decision — pricing in this market has moved within the last 8 weeks.

Model	API cost ($/M in–out)	Self-hosting cost/mo (24/7, GPU rental only)	Self-hosting requirements	Where it wins
Gemma 4 (26–31B)	Free to self-host, no first-party API	~$950–1,800	1 GPU	Cheapest to self-host
Llama 4 Maverick	$0.15–0.50 / $0.15–0.50	~$3,000–9,000	2-4 GPUs	Multimodal + broad tooling support
Qwen 3.5	~$0.11 / $0.11	~$11,500–23,000	8×H100	Best cost-to-performance overall
DeepSeek V4 Flash	~$0.14 / $0.28	~$11,500–23,000	8×H100	Cheap API, strong reasoning
DeepSeek V4 Pro	~$0.44 / $0.87	$20,000+	Multi-node	Highest open-weight benchmark scores
Mistral Large 3	$0.50 / $1.50	~$11,500–23,000+	Multi-node	Strong enterprise reasoning
GLM-5.2	~$1.40 / $4.40	~$11,500–23,000+	8× H200	Strong coding/agentic benchmarks
Kimi K2.6	~$0.60–0.95 / $3.00–4.00	~$11,500–23,000+	8× H200	Flexible multi-provider hosting
MiniMax M3	$0.30–0.60 / $1.20–2.40	$20,000+	Datacenter-class	Long-context, high BenchAlign rank
Nemotron 3 Ultra	$0.50 / $2.20	$20,000+	8×H200 or 16×H100	NVIDIA-native deployments
Claude Opus 4.8 (baseline)	$5 / $25 standard — $10 / $50 Fast Mode (2.5× speed)	n/a — API only	n/a — API only	Hardest reasoning tasks, zero ops, NPI workflows under contract

Claude Opus 4.8 figures reflect the standard tier at the default "high" effort/reasoning setting (Anthropic's own recommended default as of this writing). Higher effort settings ("extra"/"max") cost more per task in tokens consumed, not in per-token rate — there is no separate price tier for effort level.

6. Deployment Paths, by Model Family

Openness determines whether self-hosting is possible. This section covers how to actually get a model into production once you've decided to use it — the practical routes range from renting raw GPUs to a single-API aggregator.

Deployment Path	What it is	Best Use Case
Self-hosted GPU rental (CoreWeave, Lambda Labs, RunPod)	Rent raw GPU capacity (H100/H200) and run the open-weight model's own inference stack.	Sustained high-volume workloads; NPI or other regulated data (Section 4); full control over the stack.
OpenRouter (model aggregator)	One API key routes to 200+ models across providers; pricing passed through at cost plus a small markup.	Prototyping and benchmarking multiple open-weight models quickly, with low commitment and easy fallback if one provider is down.
Serverless inference specialists (Fireworks AI, Together AI)	Serverless, optimized hosting for open-weight models — the provider owns the GPU infrastructure and autoscaling.	Latency-sensitive production apps that want open-weight economics without owning ops.
Azure AI Foundry (Models-as-a-Service / Managed Compute)	Microsoft-hosted catalog spanning 1,900+ models including Llama, Mistral, DeepSeek, NVIDIA, and — as of	Enterprises already standardized on Azure that want one contract, one support line, and built-in compliance tooling.

Deployment Path	What it is	Best Use Case
	July 2026 — Claude, billed through Azure with enterprise SLAs and content filtering.	
AWS Bedrock / Google Vertex AI	Equivalent managed-model marketplaces on AWS and Google Cloud, hosting a mix of Claude, Llama, Mistral, Gemma, and others.	Enterprises standardized on AWS or GCP; same rationale as Azure Foundry, different clouds.
Direct vendor API (the lab's own endpoint)	Call DeepSeek, Alibaba (Qwen), Zhipu (GLM), Moonshot (Kimi), or MiniMax's own hosted API directly.	Cheapest per-token option for non-regulated, cost-sensitive workloads only — not recommended for NPI (see Section 4).
Domestic closed-frontier API (Anthropic, direct or via Bedrock/Vertex/Foundry)	Claude Opus 4.8 under a direct or marketplace enterprise agreement.	Hardest reasoning tasks, and the default path for anything touching regulated data where zero-ops matters.

Suggested Mapping by Family

- **GLM-5.2, DeepSeek V4, Qwen 3.5, Kimi K2.6, MiniMax M3 (China-origin):** self-host via domestic GPU rental for anything production-facing or regulated; OpenRouter or a serverless specialist is fine for internal prototyping only.
- **Llama 4, Gemma 4, Mistral Large 3, Nemotron 3 Ultra:** available on all three major hyperscaler marketplaces — pick whichever matches our existing cloud contract; self-host if audit reproducibility is the priority (Nemotron).
- **Claude Opus 4.8:** direct API, or through Bedrock / Vertex / Azure Foundry if we want it on the same invoice as other cloud spend — all three now carry it at general availability.

7. Recommendation

Capability, sovereignty, and compliance point to different models — that's not a conflict to resolve into one winner; it's three different business questions with three different right answers.

7.1 By Enterprise Capability (best for coding/technical workloads)

GLM-5.2 — strongest coding/agentic performance, MIT license, flexible deployment, attractive cost-to-performance. **Qwen 3.5** is a strong secondary for general-purpose workloads (Apache 2.0, best overall value).

7.2 By Sovereignty & Auditability (best for enterprise governance)

- **Primary: Nemotron 3 Ultra.** Only model with released training datasets, a full technical report, published training code, and reproducible evals — the most auditable stack end-to-end. License isn't OSI-approved, so route through Legal.
- **Secondary: DeepSeek V4 Pro/Flash.** Plain MIT, no usage caps, unusually detailed technical disclosure. Chinese-lab origin — self-host domestically and confirm data-residency/compliance fit first (see Section 4).

7.3 By Compliance Fit (NPI-touching / regulated workloads)

- **Claude Opus 4.8,** under a signed enterprise data-handling agreement, is the lowest-friction path for anything touching NPI where zero-ops matters.

- **Any open-weight model,** self-hosted domestically, is compliant regardless of country of origin — the requirement is that the data never leaves our infrastructure (Section 4.2).

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